

HOUSE No. 205

The Commonwealth of Massachusetts

PRESENTED BY:

Donald R. Berthiaume, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relating to background checks for kinship foster care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>1/15/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>7/31/2025</i>

HOUSE No. 205

By Representative Berthiaume of Spencer, a petition (accompanied by bill, House, No. 205) of Donald R. Berthiaume, Jr., relative to background checks for kinship foster care. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 132 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relating to background checks for kinship foster care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 32 of Chapter 119 of the General Laws, as appearing in the 2018 Official Edition,
2 is hereby amended by adding at the end thereof the following paragraph:- the department shall
3 screen potential grandparent care givers with a twenty year maximum look back on the potential
4 guardian's record. This is applicable to any minor infraction that has not been repeated since the
5 first infraction. Instances of felonies, violence, and sexual offenses, no matter when it occurred,
6 will not be removed from the look back.